

WOMEN'S RESERVATION IN LEGISLATURE: A CONSTITUTIONAL, POLITICAL, AND SOCIO-LEGAL ANALYSIS

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Abstract

India's Parliament has held thirteen general elections since independence. Not once, across those seven decades, have women crossed fifteen percent of Lok Sabha seats. That gap (stubborn, structural, and politically convenient for those who benefit from it) is what the Nari Shakti Vandan Adhiniyam of 2023 was enacted to close. Whether it will actually do so is a harder question than the near-unanimous vote that passed it might suggest. This paper examines the Constitution (106th Amendment) Act, 2023, through three converging lines of inquiry: its constitutional legitimacy, the political forces that shaped and now constrain it, and the social justice implications of a gender quota that notably omits OBC women from specific protection. The analysis draws on Supreme Court jurisprudence from Kesavananda Bharati to Vijayakumar, Law Commission reports, parliamentary debates, and comparative data from Rwanda, Argentina, Sweden, South Africa, and the United Kingdom. The paper's core argument is that the amendment is constitutionally unassailable but structurally incomplete, its deferred commencement tied to an overdue census, its silence on caste-gender intersection, and its indifference to intra-party gatekeeping together ensure that legal reservation (standing alone) will not deliver the transformative representation it promises.

Keywords: *Women's Reservation, Substantive Equality, Reservation, Delimitation, Gender Justice.*

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INTRODUCTION

Women's political under-representation in India is not a recent problem, nor is it a minor one. Seven decades after independence, the Lok Sabha has never crossed fifteen percent women members.¹ The Constitution of India, in its very Preamble, pledges political justice to every citizen, and Article 14 guarantees equality before law.² Yet these solemn commitments have coexisted with a legislature that is, by any honest measure, overwhelmingly male. The September 2023 passage of the Nari Shakti Vandan Adhiniyam (the Constitution 106th Amendment Act) was Parliament's belated acknowledgement of this contradiction.

The Amendment inserts Articles 330-A and 332-A into the Constitution, mandating one-third reservation of seats for women in the Lok Sabha, State Legislative Assemblies, and the Delhi Assembly. Presidential assent followed on 28 September 2023.³ The vote margins (454 to 2 in the Lok Sabha and 214 to 0 in the Rajya Sabha) suggested near-unanimity. But the fine print told a different story. The reservation will not take effect until after a national census is conducted and a delimitation exercise is completed on the basis of those figures.⁴ India's census, due in 2021, remains unconduct. The mid-2030s is the most optimistic realistic estimate for implementation.

This paper analyses the Amendment through three overlapping lenses: constitutional validity, political and social impact, and comparative global experience. It argues that the Amendment is constitutionally sound but operationally incomplete. The deferred commencement, the absence of an OBC sub-quota, and the silence on intra-party gatekeeping collectively ensure that the formal legal promise will not, by itself, produce the transformative change it names.

HISTORICAL BACKGROUND OF WOMEN'S RESERVATION IN INDIA

Before Independence: The Long Wait for the Franchise

The demand for women's political representation in India predates independence by decades. A delegation of Indian women appeared before Edwin Montagu in 1917, pressing for the franchise. They were politely ignored.⁵ The All-India Women's Conference, founded in 1927,

¹ IPU Parline Database on National Parliaments, Monthly Ranking of Women in National Parliaments (March 2024), *available at*: ipu.org/parline (last visited on: 10.05.2026).

² Constitution of India, arts. 14 and 15(1).

³ The Constitution (One Hundred and Sixth Amendment) Act, 2023 (22 of 2023) [hereinafter the 106th Amendment].

⁴ Ibid, art. 330A (proviso)

⁵ Geraldine Forbes, *Women in Modern India* 67 (Cambridge University Press, Cambridge, 1996).

kept the pressure on through the Simon Commission, the Round Table Conferences, and successive rounds of colonial constitutional negotiation. The Government of India Act, 1935 eventually extended limited voting rights to propertied women, a partial concession that satisfied no one. The structural question of reserved seats was deferred to the post-independence generation.

The Constituent Assembly's Deliberate Omission

It was not ignorance that led the Constituent Assembly to leave parliamentary reservation out of the Constitution. Hansa Mehta, serving on the Sub-Committee on Fundamental Rights, opposed reserved seats, not because she thought women were adequately represented, but because separate electoral rolls for women would echo the communal logic of the Communal Award that had helped fracture British India.⁶ The Assembly chose formal gender-neutral rights in Articles 14 and 15(1), with Article 15(3) as a permissive safety valve⁷, allowing but not requiring special provisions for women. That choice was defensible in 1949. Whether it remained so across seven more decades is the question the 2023 Amendment finally, if incompletely, answers.

The Panchayati Raj Precedent: 73rd and 74th Amendments (1992)

The Constitution (73rd and 74th Amendment) Acts of 1992 changed the terms of the debate fundamentally.⁸ Articles 243D and 243T mandated one-third reservation for women in Panchayati Raj Institutions and Urban Local Bodies, with sub-quotas for SC/ST women.⁹ Within a decade, over a million women held elected local governance positions, the largest single expansion of women's political participation in any democracy. Female-headed panchayats built more water facilities, invested more in schools, and showed lower rates of petty corruption than male-led counterparts.

The most rigorous evidence came from Chattopadhyay and Duflo, whose randomised natural experiment across West Bengal and Rajasthan found that villages with reserved female pradhans invested significantly more in drinking water infrastructure and girls' education.¹⁰ This research

⁶ Constituent Assembly of India Debates, 781 (December 17, 1948), *available at*: cadindia.clpr.org.in (last visited on: 10.05.2026).

⁷ Constitution of India, art. 15, cl. 3.

⁸ Constitution (Seventy-Third Amendment) Act, 1992 (20 of 1992); The Constitution (Seventy-Fourth Amendment) Act, 1992 (21 of 1992).

⁹ Constitution of India, arts. 243D(3) and 243T(3).

¹⁰ Raghavendra Chattopadhyay and Esther Duflo, "Women as Policy Makers: Evidence from a Randomized Policy Experiment in India" 72 (5) *Econometrica* 1409 (2004). See, Animesh Kumar (ed.), *DEEPENING DECENTRALISATION: An Analysis of Local Governments in India Over the Last Three Decades* (Anagh, 2024) *available at SSRN*: <https://ssrn.com/abstract=5236713> (last visited on: 02.06.2026).

became the empirical foundation of the parliamentary reservation argument for the next fifteen years, and also generated the most durable argument against it: the pati panchayat problem, where husbands effectively ran the show from behind elected wives.

Twenty-Seven Years of Near Misses: 1996-2023

The Women's Reservation Bill was first introduced in the Eleventh Lok Sabha in 1996. It lapsed when the government fell. It was reintroduced in 1998, 1999, 2002, and 2003, each time meeting some combination of coalition arithmetic, OBC sub-quota demands, and parliamentary procedure problems. The most agonising near-miss was March 2010, when the Rajya Sabha passed it 186 to 1.¹¹ Champagne was premature. The Bill sat in the Lok Sabha for thirteen more years, never brought to a vote.

The September 2023 passage came fast, almost suspiciously so. Three days from introduction to Presidential assent.¹² The ruling party had a commanding majority and needed no coalition management. The near-unanimous votes (454 to 2, then 214 to 0) masked the absence of any real parliamentary deliberation on the deferred commencement clause that effectively postpones the Amendment's operation by a decade or more.

CONSTITUTIONAL FRAMEWORK

Articles 14 and 15: The Equality Architecture

Article 14 guarantees equality before the law and equal protection of the law. Courts have long recognised that this does not mean identical treatment regardless of circumstance, it means rational, non-arbitrary differentiation. The Supreme Court's landmark reformulation in *E. P. Royappa v. State of Tamil Nadu*¹³ captured this precisely: Article 14 is a guarantee against arbitrariness. Reserving one-third of parliamentary seats for women is not arbitrary; it corrects for the century-old, documented exclusion of women from formal political power.

Article 15(1) prohibits sex-based discrimination by the State.¹⁴ The apparent paradox dissolves when Article 15(3) is read alongside it. Article 15(3) carves an express exception: nothing in Article 15 prevents special provisions for women. The Supreme Court in *Government of Andhra*

¹¹ Rajya Sabha Debates on March 9, 2010 (Constitution (One Hundred and Eighth Amendment) Bill passed 186 votes to 1), *available at*: rajyasabha.nic.in (last visited on May 10, 2026).

¹² Lok Sabha Debates on September 19, 2023 (Constitution (One Hundred and Twenty-Eighth Amendment) Bill passed 454-2), *available at*: sansad.in (last visited on May 10, 2026); Rajya Sabha Debates on September 21, 2023 (Bill passed 214-0), *available at*: sansad.in (last visited on May 10, 2026).

¹³ AIR 1974 SC 555

¹⁴ Constitution of India, art. 15, cl. 1.

*Pradesh v. P. B. Vijayakumar*¹⁵ held that this exception is enabling in character, not merely protective. It authorises positive discrimination, not just safety-net welfare.

Directive Principles as Interpretive Context

Article 39(a) directs the State to secure equal livelihood rights for men and women; Article 46 directs the promotion of the interests of weaker sections.¹⁶ Neither is independently justiciable; Article 37 is clear on that point.¹⁷ But the Supreme Court has consistently treated DPSPs as shaping the interpretive environment in which fundamental rights are read.

The Dignity Dimension of Article 51A (e)

Fundamental duties attract less constitutional attention than they deserve. Article 51A(e) asks every citizen to renounce practices derogatory to women's dignity.¹⁸ Whether the systematic exclusion of women from legislative power qualifies as such a practice is a question worth asking openly. It does not create a justiciable cause of action. But it frames exclusion itself as constitutionally problematic.

THE NARI SHAKTI VANDAN ADHINIYAM, 2023

Legislative Enactment and Key Provisions

Strip away the ceremony and the name, and the 106th Amendment does three concrete things. First, it inserts Article 330A, requiring women to hold at least one-third of all directly elected Lok Sabha seats, with a built-in sub-quota for SC/ST women within that one-third. Second, Article 332A replicates the framework for every State Legislative Assembly. Third, Article 239AA is amended to bring Delhi's Assembly into the same arrangement.¹⁹ Reserved constituencies rotate after each delimitation; the reservation runs for fifteen years from commencement, extendable by Parliament.

Then comes the proviso. Commencement occurs only after: (a) a national census is conducted and its figures published; and (b) a delimitation exercise based on those figures is completed.²⁰ The government's stated rationale, that constituency boundaries cannot fairly be drawn without

¹⁵ (1995) 4 SCC 520 at para. 19.

¹⁶ Constitution of India, arts. 39(a) and 46.

¹⁷ *Ibid.*, art. 37.

¹⁸ *Ibid.*, art. 51A, cl. (e).

¹⁹ *Supra* note 3, arts. 330A (1), 332A and 239AA (as amended). *See*, Animesh Kumar, "Nari Shakti Vandan Adhiniyam 2023 An Analysis" 11 (1) *Kanoon Review* 42 (2024).

²⁰ *Supra* note 3, art. 330A (proviso).

current population data, has technical merit. What the Amendment conspicuously omits is any timetable enforcing that sequence. The census due in 2021 remains unconduct. No legislation sets a deadline.

Constitutional Validity and Basic Structure

Can the 106th Amendment survive a basic structure challenge? Almost certainly yes. The doctrine established in *Kesavananda Bharati v. State of Kerala*²¹ protects the constitutional core from destruction by Parliament. Substantive equality is part of that core. An amendment that advances substantive equality, by correcting the structural underrepresentation of half the population, does not abrogate the basic structure; it reinforces it.

The Deferred Commencement as Constitutional Risk

Grover and Tandon put it bluntly: the deferred commencement converts a constitutional right into an executive-controlled aspiration.²² This is not a minor regulatory scheme; it is a constitutional amendment affecting the composition of Parliament itself. Deferring its operation indefinitely to a census whose schedule is entirely at the government's discretion is, at minimum, a structural anomaly that future parliamentary reform must address.

The OBC Sub-Reservation Lacuna

OBC women are the most politically significant omission from the 2023 Amendment. Conservative estimates put them at over 40 percent of India's female population. They carry the double burden of gender subordination and caste disadvantage.²³ The Amendment carves a sub-quota for SC/ST women but does nothing for OBC women, who must now compete within the general women's category against candidates with very different levels of access to party networks, money, and social capital.

JUDICIAL PERSPECTIVE AND IMPORTANT CASE LAWS

*Indra Sawhney v. Union of India*²⁴

²¹ AIR 1973 SC 1461

²² Vrinda Grover and Tripti Tandon, "Nari Shakti Vandan Adhiniyam: Is the Devil in the Detail?" 58 (41) *Economic and Political Weekly* 13 (2023).

²³ Nivedita Menon, "The Women's Reservation Bill and the Illusion of Adequate Representation" 59(5) *Economic and Political Weekly* 22 (2024).

²⁴ AIR 1993 SC 477

Any serious engagement with Indian reservation law begins here. The nine-judge bench's holding on OBC employment reservation under Article 16(4) established principles that still govern: backwardness is social and educational, not merely economic; the fifty percent ceiling exists, and courts will enforce it; reservation is a tool of substantive equality, not permanent entitlement.

*Government of Andhra Pradesh v. P. B. Vijayakumar*²⁵

This is the case that most directly validates the 2023 Amendment's constitutional foundation. The Supreme Court upheld a rule reserving thirty percent of State service posts for women under Article 15(3) and characterised that provision as enabling, going beyond protection to authorise affirmative discrimination.

*Kishok Chandra Pati Tripathi v. Hari Shankar Srivastava*²⁶

Decided before the 73rd Amendment existed, this Allahabad High Court ruling upheld panchayat seat reservation for women, found it within State legislative competence, and rejected an Article 14 challenge. It is an early data point in a consistent line of authority.

*Pramati Educational Trust v. Union of India*²⁷

In *Pramati*, the Supreme Court reaffirmed that substantive equality, located at the intersection of Articles 14, 15, and 21, forms part of the basic structure. Invoking the basic structure against gender reservation is, in doctrinal terms, self-defeating.

*State of Karnataka v. Smt. Sumathi*²⁸

The Karnataka High Court confronted the rotation challenge directly. Rotating reserved panchayat chairperson seats across constituencies does not violate Article 14 or any freedom under Article 19(1)(a). Since the 2023 Amendment uses the same rotation logic, *Sumathi* forecloses that line of attack before it starts. Across this body of case law, a consistent thread runs,²⁹ every court that has reviewed women's legislative reservation has upheld it.

POLITICAL AND SOCIAL IMPACT

Why Presence Matters

²⁵ (1995) 4 SCC 520

²⁶ AIR 1978 All 154

²⁷ (2014) 8 SCC 1

²⁸ ILR 2007 Kar. 4551

²⁹ M.P. Jain, *Indian Constitutional Law* 892-897 (LexisNexis, New Delhi, 8th edn., 2018).

Anne Phillips spent the better part of *The Politics of Presence*³⁰ arguing something that sounds obvious but is harder to establish than it looks: a decision-making body cannot reliably represent experiences it does not contain. Women's safety on public transport, maternal health funding, domestic violence law reform, and the gender pay gap are under-resourced not because male legislators are heartless, but because the people who most directly experience these problems are not in the room in numbers sufficient to make them politically costly to ignore.

Chattopadhyay and Duflo tracked villages over multiple electoral cycles and found that female-reserved panchayats invested measurably more in drinking water and girls' schooling.³¹ The mechanism is the same at any level: people in power tend to prioritise what affects them.

The Proxy Problem, Honestly Assessed

The proxy argument, that elected women will be fronts for their husbands or male relatives, deserves honest engagement rather than dismissal.³² It is documented in Rajasthan, Bihar, and Uttar Pradesh. What the evidence does not establish is that the proxy phenomenon is permanent. Research tracking the same communities across multiple panchayat terms finds that the dynamic weakens.

Intersectionality and Compound Exclusion

Crenshaw's intersectionality framework,³³ developed in a very different national context, has a precise application here. The barriers facing a Dalit woman from rural Bihar are not simply the barriers facing any woman plus the barriers facing any Dalit, they are a qualitatively distinct compound disadvantage that neither a gender quota alone nor a caste quota alone can address.

ARGUMENTS IN FAVOUR OF WOMEN'S RESERVATION

The democratic legitimacy argument starts with arithmetic. Women are 48.4 percent of the population and roughly the same share of the electorate.³⁴ A legislature where they hold 13.6 percent of seats represents certain people far better than others. First-past-the-post systems disadvantage candidates who lack inherited constituency networks, established party relationships, and independent campaign financing.

³⁰ Anne Phillips, *The Politics of Presence* 5-8 (Oxford University Press, Oxford, 1995).

³¹ Supra note 10 at pp. 1435-1438

³² Bina Agarwal, "Participatory Exclusions, Community Forestry, and Gender" 29(10) *World Development* 1623 (2001) at pp. 1627-1629.

³³ Kimberle Crenshaw, *Demarginalizing the Intersection of Race and Sex* 139 (University of Chicago Legal Forum, 1989)

³⁴ Election Commission of India, "Statistical Report on General Elections to the Eighteenth Lok Sabha" p. 47 (2024) (Table 7).

The substantive equality argument is embedded in the Constitution's own text. Article 15(3) exists precisely because the founders understood that formal equal treatment of structurally unequal parties produces unequal outcomes.

The role model effect is documented. Beaman and colleagues found that exposure to female pradhan leadership, over a single electoral cycle, measurably reduced gender bias in adolescent girls' career aspirations.³⁵ Applied to Parliament, India's most visible political institution, the effect could shift expectations for an entire generation.

Finally, India's international obligations are not ceremonial. CEDAW's³⁶ and the Beijing Platform's 30 percent target³⁷ were ratified with full knowledge of what they required. The 2023 Amendment is the delayed fulfilment of commitments India has been making on international platforms since 1993.

CRITICISMS AND CHALLENGES

Begin with the obvious: the amendment does not apply yet, and may not for a decade.³⁸ The government that passed it will face at least two more general elections before any reserved seats exist under it.

The OBC sub-quota demand is a principled objection, not a procedural technicality.³⁹ A quota that operates as though all women face identical barriers is a fiction. That outcome is upper-caste advantage wearing gender equity's clothes.

The dynasty risk is underappreciated.⁴⁰ Indian political parties have no statutory internal democracy requirements. Documented precedent from panchayat reservation shows parties regularly fielding wives, daughters, and daughters-in-law of existing male politicians.

³⁵ Lori Beaman, Raghavendra Chattopadhyay, Esther Duflo, Rohini Pande and Petia Topalova, "Powerful Women: Does Exposure Reduce Bias?" 124(4) *Quarterly Journal of Economics* 1497 (2009) at pp. 1528-1531.

³⁶ Convention on the Elimination of All Forms of Discrimination Against Women, 1979, art. 7, 1249 UNTS 13 [hereinafter CEDAW].

³⁷ UN General Assembly, Beijing Platform for Action, Fourth World Conference on Women, UN Doc. A/CONF.177/20 (September 15, 1995) para. 190.

³⁸ *Supra* note 3, art. 330A (proviso); *supra* note 22 at pp. 14-16.

³⁹ Rajya Sabha Debates on March 9, 2010 (statements of Mulayam Singh Yadav, SP, and Sharad Yadav, JD(U), demanding OBC sub-reservation as a condition of support for the Bill), *available at*: rajyasabha.nic.in (last visited on May 10, 2026).

⁴⁰ Shirin M. Rai, "Political Parties and Women's Political Representation in India" in Bidyut Chakrabarty (ed.), *Litigating Democracy in South Asia* p. 145 at p. 158 (Routledge, London, 2021).

The rotation mechanism creates a structural disincentive.⁴¹ Long-term political careers require geographical continuity. If a woman's constituency reverts to open competition after delimitation, the entire foundation of her political career disappears overnight.

COMPARATIVE ANALYSIS WITH OTHER COUNTRIES

Rwanda

Rwanda's legislature is 61.3 percent female, the highest proportion in any national legislature globally.^{42,43} The 2003 Constitution mandated at least 30 percent women in all decision-making organs, implemented through reserved seats and closed party lists. The lesson is straightforward: rapid and legally mandated transformation of legislative gender composition is possible when political will exists.

Sweden

Sweden reaches 46.4 percent women in the Riksdag without any constitutional reservation, through voluntary party zipper lists.⁴⁴ Sweden's result took sixty years of sustained feminist organising, a proportional representation system, and a political culture already well above the global median on gender equality. India has none of these preconditions in sufficient measure.

South Africa, Argentina, and United Kingdom

South Africa reaches 45.7 percent women through the ANC's voluntary internal parity policy combined with proportional representation.⁴⁵ Argentina's 1991 Ley de Cupos required 30 percent women on candidate lists; a 2017 parity law pushed representation to 45 percent by 2023.⁴⁶ Labour's All-Women Shortlists in the UK, authorised by the Sex Discrimination (Election Candidates) Act 2002,⁴⁷ doubled female MPs in a single election. Across these examples, gender parity does not happen without deliberate institutional design.

STATISTICAL AND DATA-BASED ANALYSIS

⁴¹ Mrinal Satish, "Women's Reservation and Constitutional Discourse" 46(32) Economic and Political Weekly 74 (2011) at p. 79.

⁴² The Constitution of Rwanda, art. 9 (2003, as amended 2015).

⁴³ IPU Parline, Rwanda: Chambre des Deputes, *available at*: ipu.org/parline/RW (last visited on: 31.03.2024).

⁴⁴ IPU Parline, Sweden: Riksdag, *available at*: ipu.org/parline/SE (last visited on: March 31, 2024).

⁴⁵ IPU Parline, South Africa: National Assembly, *available at*: ipu.org/parline/ZA (last visited on: 31.03. 2024).

⁴⁶ Ley No. 24.012 (Argentina) (November 3, 1991); Ley No. 27.636 (Argentina) (June 24, 2021).

⁴⁷ Sex Discrimination (Election Candidates) Act 2002 (c. 2) (UK).

In 1952, 22 women were elected to the First Lok Sabha, 4.4 percent. The Seventeenth Lok Sabha (2019) reached a historic peak of 78 women, 14.4 percent. The Eighteenth (2024) came in at 74, or 13.6 percent.⁴⁸ At the average rate of increase across seven decades, India reaches 33 percent sometime around 2060. India sits at 148th of 193 countries in the IPU's March 2024 rankings.⁴⁹ The global average stands at 26.9 percent. India is 13 percentage points below it.

Across all State Legislative Assemblies, the average women's representation sat around 9.4 percent in 2024.⁵⁰ India ranked 108th on the UNDP Gender Inequality Index in 2023-24.⁵¹ Legislatures with more women invest more in the public goods that reduce gender inequality.

SUGGESTIONS FOR REFORMS

Firstly, fix the commencement problem with a statutory deadline.⁵² Parliament should prescribe that the Presidential commencement order must be issued within five years of assent, by September 2028.

Secondly, legislate OBC sub-reservation. A constitutional amendment or parliamentary statute under Article 15(3) should create a specific sub-quota for OBC women within the women's one-third.

Thirdly, amend the Representation of the People Act.⁵³ Parties should field a minimum percentage of women in competitive constituencies, starting at 20 percent and escalating to 33 percent across two electoral cycles.

Fourthly, enact anti-proxy legislation. A statutory provision should criminalise the effective control of an elected woman's legislative functions by a male relative or party official.

Fifthly, build political capacity systematically.⁵⁴ A properly funded National Institute for Democratic Participation should provide legislative skills training and sustained political mentoring for women at every level.

⁴⁸ Election Commission of India, "Statistical Report on General Elections to the First Lok Sabha, 1951-52" p. 23 (1952) (Table 3); Election Commission of India, "Statistical Report on General Elections to the Seventeenth Lok Sabha" p. 31 (2019) (Table 7); Election Commission of India, *supra* note 34.

⁴⁹ *Supra* note 1 (global average 26.9%; Bangladesh 21.5%; Nepal 34.4%).

⁵⁰ National Commission for Women, "Women in Politics and Decision Making in India: Beyond Numbers" pp. 34-37 (NCW, New Delhi, 2018).

⁵¹ UNDP, Human Development Report 2023-24 pp. 284-287 (UNDP, New York, 2024).

⁵² Law Commission of India, "Electoral Reforms" Report No. 255 (Law Commission of India, New Delhi, 2015) paras. 4.1-4.9.

⁵³ The Representation of the People Act, 1951 (43 of 1951).

Sixthly, study electoral system reform.⁵⁵ Every country with above 40 per cent women's parliamentary representation uses proportional representation in some form. The Law Commission should study mixed-member proportional systems within three years.

CONCLUSION

The Nari Shakti Vandan Adhiniyam is real legislation, not theatre. It amends the Constitution. It creates a legal entitlement to one-third women's representation that did not exist before September 2023. Courts will uphold it. Its basic structure credentials are sound. Seventy-five years of slow, uneven progress toward gender parity in Indian legislatures now has a constitutional floor, and that matters.

But the conditions attached to that floor are significant enough to warrant something more than celebration. An amendment whose commencement depends on a census the government has not scheduled, implemented through a party system the amendment does not regulate, benefiting a category of 'women' defined without reference to the caste hierarchies that make the category internally unequal, this is a foundation on which something transformative might be built. It is not transformation by itself.

The comparative record is instructive without being prescriptive. Rwanda achieved 61 percent through constitutional mandate. Sweden achieved 46 percent through voluntary party action. Argentina moved from 5.8 percent to 45 percent through escalating statutory candidate quotas. What these examples share is a common recognition that gender parity in legislatures does not happen without deliberate institutional design. India has the constitutional design. What it still lacks is the institutional architecture to make that design operational.

The Preamble promised political justice.⁵⁶ The equality guarantees in Articles 14 and 15 and the international commitments in CEDAW and Beijing are specific about what that promise requires.⁵⁷ The 2023 Amendment moved the constitutional text closer to its own promises. The remaining distance is not rhetorical, it is institutional, political, and structural. Closing it is the work that remains.

⁵⁴ Rohini Pande and Deanna Ford, "Gender Quotas and Female Leadership: A Review" pp. 14-17 (World Bank, Washington D.C., 2011). *See also*, Animesh Kumar, "Gender Equality and Local Democracy: An Evaluation of Women Representation and Participation in Panchayati Raj Institution in India" in Dr. Taruna, & Dr Arpit Shailesh (eds.), Building Atma Nirbhar Bharat 41 (1st ed.), Weser Books (2022), *available at SSRN*: <https://ssrn.com/abstract=5022929> (last visited on: 08.06.2026).

⁵⁵ Rekha Saxena, "Women's Reservation and the Politics of Presence" 5 (2) *Studies in Indian Politics* 210 (2012)

⁵⁶ The Constitution of India, Preamble.

⁵⁷ The Constitution of India, arts. 14 and 15(3); *supra* note 36, art. 7; *supra* note 37.